

1.

CASE #	CASE NAME	HEARING NAME
CVRI2402474	PEREZ vs LE	MOTION FOR CONTINUANCE

Tentative Ruling:

Motion Denied without prejudice. No proof of service filed.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2402474	PEREZ vs LE	MOTION FOR CHANGE OF VENUE; DECLARATION OF LISA PEREZ

Tentative Ruling:

Motion Denied without prejudice. No proof of service filed.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2600422	MARTINEZ vs BUCKEYE RETIREMENT CO., LLC	ANTI-SLAPP MOTION (SPECIAL MOTION TO STRIKE)

Tentative Ruling:

Summary of Ruling:

The Court grants the Special Motion to Strike Plaintiffs' Complaint as to all causes of action alleged against Defendant Walker alleged under the 1st, 2nd, 4th, 5th, 6th, and 7th cause of action for (1) extrinsic fraud, (2) abuse of process, (3) aiding and abetting, (4) civil conspiracy, (5) litigation privilege avoidance, and (6) quiet title/declaratory relief, respectively.

Defendant Walker has satisfied the first-prong showing of demonstrating that the causes of action arise out of activities which are protected under the anti-SLAPP statute (Code Civ. Proc., § 426.16(e).) Once the burden shifted to Plaintiffs, they fail to satisfy the second prong of the anti-SLAPP analysis by failing to demonstrate a reasonable probability of prevailing on the causes of action alleged against Defendant Walker.

Defendant Walker's Request for Judicial Notice Exhibits A-D is granted to the extent the matters for which judicial notice is requested exist in court records or files, but they are not accepted for the truth of the matters stated, unless the matters are indisputably true. (Evid. Code, §452(d) [judicial notice may be taken of records of any court of this state]; See *Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1564-1569.)

In light of this ruling to grant the motion, Defendant Walker's concurrently filed demurrer is rendered moot.

Factual / Procedural Context:

Defendant Holly Walker brings this Anti-SLAPP motion to strike the Verified Complaint of Plaintiffs, Andres Martinez Jr. and Yvette Y. Heredia, which alleges the causes of action for (1) extrinsic fraud/ fraud on the court, (2) abuse of process, (3) wrongful foreclosure, (4) aiding and abetting, (5) civil conspiracy, (6) litigation privilege avoidance allegations, and (7) quiet title/ declaratory relief. All but the third cause of action for wrongful foreclosure are alleged against Defendant Walker.

This action ensued after Plaintiffs were allegedly evicted from their residence in Corona, California, after it was sold at a sheriff's sale in satisfaction of a 2007 judgment entered against Plaintiff Martinez in a separate action in Kern County. Plaintiffs allege that their jointly owned property was wrongfully sold at the sheriff's sale which stripped Plaintiff Heredia's 50% share of the equity in the property whereas the judgment was entered solely against Plaintiff Martinez. (Complaint, pg. 3, ln. 3-7.) Plaintiffs allege that the judgment for conversion and fraud was wrongfully entered against Plaintiff Martinez without a fair adjudication after the court's granting of an unopposed summary judgment morion of Buckeye Retirement Co., LLC (also a Defendant in the present action) filed through its attorney, Holly Walker. (Complaint, ¶¶ 4-9.) Plaintiffs assert that the Kern County judgment was therefore obtained through extrinsic fraud or extrinsic mistake, depriving Plaintiff Martinez of his day in court. (Complaint, ¶ 10.) Many years after the allegedly wrongful sale of their home, on February 24, 2026, Plaintiff filed the instant action in this Court.

In the instant motion to strike pursuant to anti-SLAPP statute, Defendant Walker contends each and every allegation against her relates to alleged statements that she made in court proceedings in representing a client, Buckeye Retirement Corp., Co. L.L.C., LTD, in litigation which are protected activities under the Anti-SLAPP statute. Defendant Walker also argues that Plaintiffs' claims are without merit and barred by the litigation privilege (Civ. Code, § 47(b)) and that Plaintiffs' tort claims are barred by the applicable statute of limitations.

In summary, the motion is granted.

Analysis

I. Anti-SLAPP Motion

"The Legislature enacted...anti-SLAPP statute [strategic lawsuit against public participation]...to provide a procedural remedy to dispose of lawsuits that are brought to chill the valid exercise of constitutional rights. [Citation.]" (*Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1055.) Code of Civil Procedure section 425.16 provides a two-step test in determining whether a cause of action constitutes a SLAPP. (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 88; Code Civ. Proc., §425.16(b)(1).) First, the defendant must make the "threshold showing" that the challenged cause of action arises from "protected speech or petition activity." (*Id.*) "[T]he statutory phrase 'cause of action...arising from' means simply that the defendant's act underlying the plaintiff's cause of action must *itself* have

been an act in furtherance of the right of petition or free speech.” (*City of Cotati v. Cashman* (2002) 29 Cal.4th 69, 78, original italics.) This step is satisfied if the defendant shows that the challenged claims arise from one of the four protected activities provided under Code Civ. Proc., §425.16(e)¹.

In the first step of the analysis, the moving defendant must identify all allegations of protected activities and demonstrate that the challenged claims arise from those activities. (*Shahbazian v. City of Rancho Palos Verdes* (2017) 17 Cal.App.5th 823; *Baral v. Schnitt* (2016) 1 Cal.5th 376.) In so doing, the court is “not limited to examining the allegations of the complaint alone but rather considers the pleadings and the factual material submitted in connection with the special motion to strike.” (*Contreras v. Dowling* (2016) 5 Cal.App.5th 394, 408.)

Second, “[i]f the court finds the defendant has met this threshold burden, it then determines whether the plaintiff has demonstrated a probability of prevailing on the merits of the plaintiff’s claim.” (*Navellier v. Sletten, supra*, 29 Cal.4th at 88-89.) To meet this second step, the plaintiff must demonstrate: (1) “that the complaint is both legally sufficient” and (2) “supported by a...prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited. [Citation.]” (*Id.* at 89.) In analyzing this step, the court considers “the pleadings and supporting and opposing affidavits stating the facts upon which the liability or defense is based.” (Code Civ. Proc., §425.16(b).)

II. Defendant Walker has made the “threshold showing” that the challenged causes of action arise from “protected speech or petition activity.”

Defendant Walker argues that each and every allegation against her relates to alleged statements that she made in court proceedings in representing a client in litigation, which come within the provision of Code of Civil Procedure section 425.16 that protects speech made in an official proceeding authorized by law or made in connection with an issue under consideration in an official proceeding (Code Civ. Proc., § 425.16(e)(2)). Defendant Walker also argues that, once the burden shifts to Plaintiffs to demonstrate the probability of prevailing on the merits of their claims, Plaintiffs cannot meet this burden because Defendant has a defense of litigation privilege pursuant to Civil Code section 47, subdivision (b).

Defendant Walker correctly argues that the causes of action asserted against her arise out of protected activities. “As is true with summary judgment motions, the issues in an anti-SLAPP motion are framed by the pleadings.” [Citations.]” (*Medical Marijuana, Inc. v. Project CBD.com* (2020) 46 Cal.App.5th 869, 883.) “Thus, the act or acts underlying a claim for purposes of an anti-SLAPP statute is determined from the

¹ (1) writing or oral statement made before a legislative, executive, or judicial proceeding; (2) writing or oral statement made in connection with an issue under consideration or review by a legislative, executive, or judicial body; (3) written or oral statement made in place open to the public or a public forum in connection with an issue of public interest; (4) any conduct in furtherance of the exercise of the constitutional right of petition or free speech in connection with a public issue or an issue of public interest. (Code Civ. Proc., §425.16(e)(1)-(4).)

plaintiffs' allegations." [Citation.] (*Ibid.*) Here, in support of the causes of action against Defendant Walker, Plaintiffs allege that Walker engaged in the following activities:

In 2006-2007, Buckeye, through its attorney Holly Walker, filed a civil action in Kern County Superior Court alleging fraud and conversion against Plaintiff. (Complaint, ¶ 4.)

In the underlying Kern County action, Defendant Holly Walker, acting as counsel for Buckeye Retirement Co., LLC and as an officer of the court, affirmatively alleged and represented that Plaintiff Andres Martinez Jr. committed identity theft and forgery... [¶] Those representations were false. (Complaint, ¶¶ 23-24.)

Walker fabricated or materially embellished allegations of identity theft and forgery to manufacture standing, avoid statute-of-limitations bars, and justifying pursuing Martinez as a substitute judgment debtor" (Complaint, ¶ 28.)

These fabricated allegations were material. Absent them, Defendants lacked a lawful basis to obtain the judgment, revive it, or later weaponize it against Plaintiffs' homestead residence. (Complaint, ¶ 29.)

On April 26, 2007, the court granted summary judgment solely because it noted "NO OPPOSITION", without adjudicating the merits. (Complaint, ¶ 9.)

The judgment was therefore obtained through extrinsic fraud and/or extrinsic mistake, depriving Plaintiff of his day in court. (Complaint, ¶ 10.)

Years later, the judgment was renewed, assigned, and ultimately transferred to WFG. In 2021-2022, Defendant s sought to enforce the judgment against Plaintiff's primary residence in Riverside County. (Complaint, ¶¶ 11-12.)

On May 19, 2022, the court issued an order directing a sheriff's sale based on [an] incorrect homestead amount. [¶] ... [¶] On August 18, 2022, the Property was sold at sheriff's sale. (Complaint, ¶¶ 16-19.)

These allegations supply the bases for Plaintiffs' claims against Defendant Walker. Defendant Walker's alleged statements and actions were in connection with the civil lawsuit against Plaintiff Martinez which are protected activities. The anti-SLAPP statute protects statements and writings made before a legislative, executive or judicial proceeding, "or any other official proceeding authorized by law." (Code Civ. Proc., §425.16(e)(1); See *Okorie v. Los Angeles Unified School Dist.* (2017) 14 Cal.App.5th 574, 594.) "The anti-SLAPP statute protects all petition-related activity before a governmental body whether or not the statements involve a public issue: "[A]ll that matters is that the First Amendment activity take place in an official proceeding or be made in connection with an issue being reviewed by an official proceeding." (*Briggs v. Eden Council for Hope & Opportunity* (1999) 19 Cal.4th 1106, 1116.) Second, the

statute protects “any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law.” (Code Civ. Proc., §425.16(e)(2).) Therefore, Defendant Walker has made the threshold showing of the first prong of the anti-SLAPP statute.

III. Plaintiffs have not met the burden of showing that they will prevail on the merits of his claims.

Once Defendant has met the threshold showing that the alleged claims are based on activities protected under the anti-SLAPP statute, the burden then shifted to Plaintiffs to demonstrate a reasonable probability of prevailing on the merits of their causes of action to show that it is legally sufficient and supported by a sufficient prima facie showing of facts by submitting evidence, if credited, would sustain a favorable judgment. (*Navellier v. Sletten, supra*, 29 Cal.4th at 89.) Here, because the motion is unopposed, Plaintiffs have failed to meet this burden as no evidence was submitted to demonstrate a reasonable probability of prevailing on the merits of their claims.

It may be argued that the Complaint is verified and may stand as evidence in proving merits. However, even if the allegations of the Complaint are credited and Plaintiffs are thereby able to make a prima facie evidentiary showing, “the claims may still be stricken if the defendant can establish a complete affirmative defense to the claims.” (*Dwight R. v. Christy B., supra*, (2013) 212 Cal.App.4th 697, 714.) Here, Defendant Walker correctly notes that her alleged activities are protected by the litigation privilege. Civil Code section 47, subdivision (b), provides that a “privileged publication or broadcast is one made...[i]n any...judicial proceeding, or...in any other official proceeding authorized by law.” The privilege applies to communications in connection with potential litigation or one that was contemplated in good faith and under serious consideration. (*A.F. Brown Electrical Contractor, Inc. v. Rhino Elec. Supply, Inc.* (2006) 137 Cal.App.4th 1118, 1128.) Here the official proceeding underlying the privilege is the civil lawsuit filed by Defendant Walker on behalf of her client in the Kern Superior Court (Case No. S-1500-CV258449). (See Request for Judicial Notice, Ex. A.) Defendant Walker’s statements made in furtherance, and within these proceedings, without evidence of their falsity, were privileged activities authorized by law.

Plaintiffs have not submitted an opposition addressing affirmative defense under the litigation privilege of Civil Code section 47, subdivision (b). Therefore, Plaintiffs have not sufficiently demonstrated the reasonable probability of succeeding on their claims. As such, Defendant Walker’s special motion to strike under the anti-SLAPP statute is granted.

IV. Request for fees

Defendant Walker seeks fees and costs of \$13,334.15 incurred in connection with the instant motion. Code of Civil Procedure section 425.16, subdivision (c)(1), authorizes the Court to award fees and costs reasonably incurred by a moving defendant in connection with bringing the special motion to strike under the anti-SLAPP statute. Based on statutory language, the fees and costs are mandatory. (Code Civ.

Proc., § 425.16(c) [“prevailing defendant on a special motion to strike shall be entitled to recover that defendant’s attorney’s fees and costs”).] The Court finds the requested amount is reasonable and awards fees and costs of \$13,334.15 to Defendant Walker. Plaintiffs are ordered to pay the awarded amount no later than 30 days from the date of this order.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2600422	MARTINEZ vs BUCKEYE RETIREMENT CO., LLC	DEMURRER ON COMPLAINT

Tentative Ruling:

Demurrer is moot, based upon Court’s ruling on ANTI-SLAPP MOTION (SPECIAL MOTION TO STRIKE).

5.

CASE #	CASE NAME	HEARING NAME
CVRI2601403	MORGAN vs CUSHMAN & WAKEFIELD	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

Summary of Ruling: The Court grants the motion and stays the matter pending arbitration. The Court overrules the evidentiary objections.

Factual / Procedural Context:

Tiyiesha Morgan (“Plaintiff”) was employed by Cushman & Wakefield (“Defendant”) as an assistant property manager. She contends that the apartment complex where she worked was kept in an unsafe condition because there was a lack of security, which resulted in unhoused individuals breaking into apartment units. She asserts that these break-ins and concern for her safety caused her stress, which resulted in her needing to take a leave of absence due to her mental health. After being out on medical leave for approximately seven months, Plaintiff received a letter from Defendant indicating that Plaintiff’s leave appeared indefinite. It demanded that Plaintiff provide more documentation from her healthcare provider within a week or her employment would be terminated. Plaintiff complied with the request for additional information and had her physician fill out a form sent by Defendant. Even though Plaintiff provided the requested information, she was sent a letter dated October 3, 2024, indicating that her employment has been terminated due to her indefinite leave.

The complaint asserts the following causes of action: (1) discrimination on the basis of disability, (2) failure to engage in a good-faith interactive process, (3) failure to reasonably accommodate a known disability and retaliation for requesting a reasonable accommodation, (4) retaliation, (5) failure to prevent discrimination and/or retaliation, (6)